

MASTER SERVICE AGREEMENT

This Master Service Agreement ("Agreement") is entered into between Nexora Technologies Pvt Ltd ("Company") and Zenith Analytics LLP ("Client") effective from January 1, 2026.

1. SERVICES

The Company agrees to provide cloud infrastructure management, cybersecurity monitoring, AI-powered analytics, and software maintenance services to the Client.

The Client agrees to provide all necessary access credentials, documentation, and technical cooperation required for service delivery.

2. PAYMENT TERMS

The Client shall pay the Company a monthly fee of INR 4,50,000 payable within 15 days of invoice issuance.

Late payments beyond 30 days shall attract an interest penalty of 2% per month.

Failure to make payment for more than 60 days may result in suspension of services.

3. CONFIDENTIALITY

Both parties acknowledge that they may gain access to confidential information including but not limited to trade secrets, client databases, internal architecture diagrams, AI models, pricing information, and business strategies.

Neither party shall disclose confidential information to any third party without prior written consent.

The confidentiality obligations shall survive termination of this Agreement for a period of five years.

4. DATA PROTECTION

The Company agrees to comply with all applicable data protection and privacy laws including the Digital Personal Data Protection Act of India and GDPR where applicable.

The Client shall ensure lawful collection of all customer data provided to the Company.

In the event of a data breach, the Company must notify the Client within 48 hours.

5. INTELLECTUAL PROPERTY

All software, machine learning models, documentation, source code, APIs, and infrastructure developed by the Company shall remain the exclusive intellectual property of the Company unless otherwise agreed in writing.

The Client shall not reverse engineer, duplicate, resell, or redistribute the Company's proprietary technology.

6. LIABILITY LIMITATION

The Company shall not be liable for indirect, incidental, punitive, or consequential damages arising out of this Agreement.

The total liability of the Company shall not exceed the total fees paid by the Client in the preceding three months.

The Company shall not be responsible for losses caused by third-party cyberattacks, force majeure events, or unauthorized system access caused by Client negligence.

7. INDEMNIFICATION

The Client agrees to indemnify and hold harmless the Company against claims, losses, liabilities, penalties, and expenses arising from:

- misuse of the platform
- unlawful customer data collection
- regulatory violations
- intellectual property infringement by the Client

The Company agrees to indemnify the Client against proven breaches directly caused by Company negligence.

8. TERMINATION

Either party may terminate this Agreement with a 45-day written notice.

The Company may immediately terminate services in the event of:

- material breach
- illegal activities
- repeated payment defaults
- cybersecurity threats caused by the Client

Upon termination, all outstanding dues shall become immediately payable.

9. NON-COMPETE

The Client agrees not to develop or engage with competing AI infrastructure providers using proprietary knowledge obtained from the Company for a period of two years following termination.

10. DISPUTE RESOLUTION

All disputes arising under this Agreement shall first be attempted to be resolved through mutual negotiation.

If unresolved within 30 days, disputes shall be settled through binding arbitration in Bangalore, India in accordance with the Arbitration and Conciliation Act.

11. FORCE MAJEURE

Neither party shall be liable for delays or failures caused by events beyond reasonable control including natural disasters, war, cyber warfare, internet outages, government restrictions, or pandemics.

12. AUDIT RIGHTS

The Company reserves the right to conduct periodic security and compliance audits of systems connected to its infrastructure.

The Client agrees to cooperate with reasonable audit requests.

13. EMPLOYEE RESTRICTIONS

The Client shall not directly hire or solicit employees of the Company during the term of this Agreement and for one year thereafter.

14. GOVERNING LAW

This Agreement shall be governed by and interpreted under the laws of India.

15. ENTIRE AGREEMENT

This Agreement constitutes the complete understanding between the parties and supersedes all prior agreements, oral or written.

Signed,

Nexora Technologies Pvt Ltd

Zenith Analytics LLP